3	Salas vs. Capsule Manufacturing, Inc.	Solmer Law Group's ("Solmer") unopposed motion to be relieved as counsel for plaintiff Jennifer Salas ("Plaintiff") is DENIED without prejudice. Under California Rules of Court, Rule 3.1362(d), a motion to be relieved as counsel must be served on the client and on all other parties who have appeared in the case. Solmer has not filed a proof of service with the court at least five court days prior to the hearing. (Rule 3.1300(c).) As there is no evidence Plaintiff and the three defendants have been served, the motion is denied without prejudice to re-filing, properly serving all parties, and timely filing notice of service. Solmer to give notice of the ruling.
4	Creditors Adjustment Bureau, Inc. v. Societal CDMO, Inc.	O/C
5	Rancho Pacific Retail Partners LLC v. Hiccups Barista Inc.	Before the Court is a motion by defendants Hiccups Barista Inc. and Sky Hoang (Defendants) for leave to file an amended answer and a cross-complaint. As set forth below, the motion is **GRANTED**. Under Code of Civil Procedure section 473, the "court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading. (Code of Civ. Proc. § 473, subd. (a), § 576.) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Husley v. Koehler* (1990) 218 Cal.App.3d 1150, 1159 [policy of liberality is particularly true for amendments to answers].) Here, the Court finds the motion for leave to amend substantially complies with the requirements of California Rules of Court, rule 3.1324, and no prejudice has been shown. (Declaration of William T. Carlsen ¶¶ 4-5, Ex. B.) The motion for leave to file an amended answer is therefore **GRANTED**. A cross-complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) A party acting in good faith may apply to the court for leave to file a cross-complaint, at any time during the course of the action. (Code of Civ. Proc. § 426.50.) Leave to file compulsory cross-complaint is mandatory absent bad faith. (*Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.) Here, the Court finds the proposed cross-complaint contains causes of action related to the causes of action pleaded by Plaintiff in the complaint and is thus, compulsory. (Carlsen Decl., Ex. B.) No bad faith has been shown. While some of these cross-claims are also alleged against a new party, leave to amend to file a permissive cross-complaint may be granted "in the interest of justice" at any time during the course of

		the action. (Code of Civ. Proc. § 428.50, subd. (c).) The cross-claims against the new party arise out of the same transaction, occurrence or series of transactions as set forth in the complaint and are proper. (Code of Civ. Proc. § 428.10, subd. (b).) In fact, the cross-claims against the new party are intertwined with the cross-claims against Plaintiff. Leave to amend will thus promote efficiency in having all the claims adjudicated in one action. For these reasons, the motion to file the cross-complaint is **GRANTED**. Defendants shall file forthwith the proposed first amended answer attached as Exhibit B to the Carlsen Declaration and the proposed cross-complaint attached as Exhibit 1 to the Supplemental Carlsen Declaration. Case Management Conference is **CONTINUED** to October 30, 2026, at 9:30 a.m. Defendants shall give notice of this ruling.
6	Itria Ventures LLC v. Johnsonvan, Inc.	The unopposed motion for summary adjudication filed by plaintiff Itria Ventures LLC (Plaintiff) is **GRANTED**. (Code Civ. Proc., § 437c.) Plaintiff moves for summary adjudication in its favor and against defendant Johnsonvan, Inc., dba V-Fast Rental (Johnsonvan) as to Plaintiff's third cause of action for breach of contract against Johnsonvan. The subject contract is governed by New York law. (See Smalbach Decl., ¶ 6 and Ex. A [Receivables Sale Agreement, § 15].) The elements of a breach of contract claim are: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damage to plaintiff. (*Kapoor v. AWI Wireless LLC*, 159 AD3d 1027, 1030 (NY App. 2d 2018); *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff has presented evidence to show that on March 10, 2025, Plaintiff and Johnsonvan entered into a contract titled Receivables Sale Agreement (RSA) under the terms of which Plaintiff would pay Johnsonvan $85,000 for the purchase of $108,800 of Johnsonvan's accounts receivable. (UMF 1.) The RSA provided that Johnsonvan would remit 11.44% of its accounts receivable every week, which amounted to $2,472.73 each week, until Plaintiff had collected the amount sold. (UMF 2.) Plaintiff performed all of its obligations under the RSA, including paying the purchase price to Johnsonvan in March 2025. (UMF 1, 3.) Johnsonvan breached the RSA by failing to make the promised remittance on May 20, 2025. (UMF 5.) Plaintiff demanded that Johnsonvan remit the amounts due under the RSA, but Johnsonvan has refused to do so. (Smalbach Decl., ¶ 12.) As a result of Johnsonvan's breaches of the RSA, Plaintiff has suffered damages in the amount of $91,570.43, which includes $89,070.43 in uncollected accounts receivable under the RSA to date, plus the $2,500 in-house collection fee as set forth in Section 8 of the RSA. (UMF 5.)